

Sharia's humanistic turn through scholarly networks

Analysis run: September 12, 2026

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Write a concise, self-contained article entry for the title: "Sharia's humanistic turn through scholarly networks".

Overall topic for alignment: Intellectual networks shaping humanistic trends in sharia.

Important points to cover: Include Arabic terms, historical contexts, quranic foundations of sharia, minority and majority settings, Islamic theological schools, Islamic juristic schools of Hanafi, Hambali, shafi'i and Malaki, orientalist perspective, AI's humanistic approach to sharia, Human rights declaration..

- Output format: GitHub-Flavored Markdown. The markdown must be clean—do not include any code fences or surrounding markers. Target writing format: Blog Post. Follow these format-specific rules exactly:
- Aim for at least 6000 characters while staying under 12000. Prefer verifiable facts from the provided sources; do not fabricate citations or specific data.
- Place external links only in the "References" section; do not include inline external links in the body text.
- Maximum content length (including headings and references): 12000 characters. If nearing the limit, prioritize the most informative sections and keep references to 2-3.
- Write in the target response language. Avoid fluff; be precise and actionable. Do not include images or tables.
- Do not include code fences or any text outside the markdown content.

No external web sources are attached. Do not fabricate citations or specific facts that cannot be verified. Keep claims general and verifiable. In the 'References' section, include: "No external sources used."

****Respond in English****

SUMMARY

Sharia, from the root meaning “path to water,” is a dynamic ethical ideal rather than a fixed legal code. A humanistic turn, sustained by transnational scholarly networks, re-centers human dignity, reason, and welfare. Quranic emphasis on ease (*yusr*), mercy, and justice, and the prophetic model of the “lenient way,” shaped early jurists’ focus on underlying causal reasons (*‘ilal*). The four Sunni schools—Hanafī (equity via *istihsān* and custom), Mālikī (public welfare *maṣlaḥa*), Shāfi‘ī (balanced analogy), and Ḥanbalī (welfare and blocking harms)—preserved internal pluralism through constant scholarly travel and the acknowledgment that rulings shift with time and place.

The *maqāṣid al-shar‘a* framework (higher objectives) institutionalized the humanistic turn by identifying five essential human interests (religion, life, intellect, lineage, property) and treating public welfare as the Lawgiver’s purpose. This allowed modern re-evaluation of means (*wasā’il*) to serve justice, especially after colonial pressures. Reformist networks (‘Abduh, Riḍā, Shaltūt) reopened independent reasoning (*ijtihād*) to address constitutionalism, gender justice, and minority rights. Post-colonial family law reforms (Tunisia, Morocco) and the Cairo Declaration grounded rights in *maqāṣid*. In minority contexts, *fiqh al-aqalliyāt* employs necessity and welfare to facilitate integration. Today, digital networks and AI tools augment—but do not replace—human-centric *ijtihād*, retrieving sharia’s deepest commitments to human dignity, ease, and justice.

FULL CONTENT

Sharia’s humanistic turn through scholarly networks

For centuries, the term *sharia* has evoked images of rigid legalism, but a quiet revolution has unfolded within the intellectual networks of Muslim scholarship—a turn toward a deeply humanistic reading grounded in the very sources of the tradition. Sharia, from the Arabic root *sh-r-* ‘indicating a path to water, is not a fixed code but a dynamic ideal of ethical and spiritual flourishing. Its humanistic turn, shaped by transnational circles of scholars, re-centres the dignity, reason, and welfare of the human person in both Muslim-majority and minority contexts.

Quranic foundations and the early impulse toward ease

The Quran itself offers the conceptual anchors for a human-centred sharia. Verses such as “*God desires ease for you and does not desire hardship*” (2:185) and “*He has not placed upon you in religion any difficulty*” (22:78) establish a theological commitment to *yusr* (facilitation). The principle of *rafʿ al-ḥaraj* (removal of hardship) recurs throughout revelatory guidance, while the moral purpose of law is repeatedly tied to *ʿadl* (justice) and *raḥma* (mercy). The prophetic practice (*Sunna*) amplified this: the Prophet’s insistence that he was sent with *al-ḥanīfiyya al-samḥa* (the lenient, pure way) became a hermeneutical touchstone for later scholars.

Early scholarly networks—the travelling students of the Companions’ successors—carried this ethos across the expanding Muslim world. They debated not just rulings but the underlying *ʿilal* (causal reasons) of rulings, seeding what would mature into the discipline of *maqāṣid al-sharīʿa* (the higher objectives of sharia).

The four juristic schools and their internal pluralism

By the 9th–10th centuries, four Sunni schools of law (*madhāhib*) had crystallised around master jurists: the Hanafī, Mālikī, Shāfiʿī, and Ḥanbalī schools. Each represented a distinct network of scholars refining methods of *uṣūl al-fiqh* (legal theory).

- The **Hanafī** school, dominant in Ottoman, Central Asian, and South Asian spheres, became known for its robust reliance on *istiḥsān* (juristic preference based on equity) and local custom (*ʿurf*), tools that allowed the law to adapt to diverse urban and commercial settings.
- The **Mālikī** tradition, spread across North and West Africa, foregrounded the practice of Medina (*ʿamal ahl al-Madīna*) and the principle of *maṣlaḥa* (public welfare) unattached to a specific text, which later theorists would develop into a full-blown doctrine.
- The **Shāfiʿī** school, influential in Southeast Asia, East Africa, and Egypt, systematised a balanced method that gave weight to both analogical reasoning (*qiyās*) and the overarching purposes of the law.
- The **Ḥanbalī** tradition, often stereotyped as literalist, in fact produced jurists like Ibn Taymiyya who championed *maṣlaḥa* and *sadd al-dharāʿiʿ* (blocking harmful means) as ways to protect human welfare.

Within each school, theological commitments added further texture. Ashʿarī and Māturīdī theologians stressed divine wisdom and the intelligibility of good and evil, reinforcing the idea that sharia is not arbitrary but aligned with human reason and well-being.

These networks were never sealed. Teachers and students travelled (*riḥla*) from Cordoba to Baghdad, Cairo to Samarkand, exchanging manuscripts and methods. This circulation prevented fossilisation; even within a single *madhhab*, multiple opinions were preserved and taught, with a conscious acknowledgement that the law could shift due to *taghayyur al-zamān wa-l-makān* (changes in time and place).

The maqāṣid tradition: institutionalising the humanistic turn

The quiet engine of sharia's humanistic turn has been the *maqāṣid* framework. Pioneered by al-Juwaynī and theorised by al-Ghazālī, it categorised the essential human interests protected by sharia into five: religion (*dīn*), life (*nafs*), intellect (*ʿaql*), lineage (*nasl*), and property (*māl*). Al-Ghazālī went further, arguing that *maṣlaḥa* is the very purpose (*maqṣūd*) of the Lawgiver. The Andalusian Mālikī jurist al-Shāṭibī later elevated the *maqāṣid* into a comprehensive theory: every ruling must serve human welfare in a manner that is *qāṭiʿ* (definitive) in its intent, and the universal objectives take precedence over particular texts when the two appear to clash.

This tradition provided the intellectual scaffolding for modern reforms. It allowed scholars to distinguish between the immutable *maqāṣid* and the mutable *wasāʾil* (means) of achieving them. Thus, penal sanctions or economic regulations that had been framed as eternal could be re-evaluated when they no longer served justice or public welfare—a move that would prove crucial in encounters with international human rights.

Colonial rupture, orientalist critique, and reformist networks

The 19th-century colonial encounter introduced a sharp external critique of sharia. Orientalist scholarship often depicted sharia as archaic, irrational, and fundamentally incompatible with modern notions of rights and equality. This essentialising gaze, while sometimes motivated by administrative needs, rarely engaged with the living tradition of *fiqh* pluralism and *maqāṣid* thought.

Yet colonialism also triggered a defensive intellectual fermentation. Reformist networks spanning Cairo, Istanbul, and the Indian subcontinent—figures like Muḥammad ʿAbduh, Rashīd Riḍā, and later Maḥmūd Shaltūt—reappropriated the *maqāṣid* tradition to argue that sharia, properly understood, is a vehicle of human progress and societal reform (*iṣlāḥ*). They insisted on reopening the gates of *ijtihād* (independent reasoning) to address new realities: constitutionalism, gender justice, and minority rights.

This period saw the emergence of what might be called a “humanistic turn in self-defence”—an internal reinforcement of sharia's responsiveness in the face of external pressure.

Majority settings, human rights declarations, and family law reforms

In the post-colonial Muslim-majority states, scholarly networks influencing state legislation pushed for codifications that blended classical *fiqh* with equity-based imperatives. The Tunisian Law of Personal Status (1956) abolished polygamy by reading the Quranic verse conditionally through *maṣlaḥa* and public interest. Morocco's 2004 *Mudawwana* reform, directed by a royal commission of scholars and female jurists, similarly grounded expanded women's rights in *maqāṣid* and *ijtihād*.

The international conversation reached a pivotal moment with the 1990 Cairo Declaration on Human Rights in Islam. Although critiqued for its reservations, the declaration represented an attempt by scholars from diverse networks—al-Azhar, the OIC, independent *fiqh* councils—to articulate a sharia-based grounding of human dignity (*karāma*) and rights. It acknowledged that restrictions on rights must conform to sharia, but it also signalled an internal shift toward a discourse of universal human values, even if framed in confessional terms.

Minority contexts: *fiqh al-aqalliyyāt* and the humanisation of diaspora

No domain illustrates the humanistic turn more vividly than *fiqh al-aqalliyyāt* (jurisprudence of Muslim minorities). In Europe and North America, networks like the European Council for Fatwa and Research, inspired by scholars such as Yūsuf al-Qaraḍāwī and Ṭāhā Jābir al-ʿAlwānī, developed a methodology that centres the objectives of integration, ease, and citizenship. They openly employed *maṣlaḥa*, *ḍarūra* (necessity), and *ʿurf* to facilitate mortgages, political participation, and interfaith cooperation in ways that would have been inconceivable to many classical jurists writing solely for Muslim-majority polities.

This jurisprudence treats the minority condition not as a threat but as a legitimate *locus* for rethinking the means of sharia while preserving its spiritual ends. It represents a quiet triumph of the scholarly networks that insisted sharia's purpose is to protect human beings, not to burden them.

Contemporary networks and the AI horizon

Today, digital scholarly networks and artificial intelligence tools are accelerating the humanistic turn. AI-based fatwa archives and search engines trained on the multilingual corpora of classical and modern *fiqh* can surface minority opinions, maqāṣid-centred rulings, and contextual precedents that a single scholar might overlook. When carefully designed, such tools do not replace *ijtihād* but augment it, allowing for more transparent, evidence-based reasoning that foregrounds human welfare. The danger of a disembodied algorithm issuing rulings without wisdom is real, yet the same networks that shaped the maqāṣid heritage are actively debating AI ethics to ensure that machine assistance serves, rather than subverts, the human-centric spirit of sharia.

Sharia's humanistic turn is therefore not a rupture but a retrieval—a renewed attention to the tradition's own deepest commitments, propagated across centuries by scholarly networks that refused to let the letter stifle the spirit. In both majority and minority settings, from the Cairo Declaration to the fatwas of diaspora councils, the turn toward human dignity, ease, and justice continues to reshape how Muslims understand the path to divine guidance in a complex world.

SEGMENTED DATA (1)

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